

Lawhive · Hackathon 2026



CASE BRIEF / FRESH

CASE 04

THE AIRLINE SAYS IT WAS EXTRAORDINARY CIRCUMSTANCES

V. 01

LONDON 30/05/26

FRESH



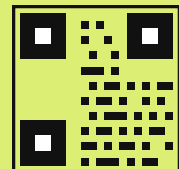
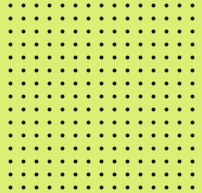
CLAIMANT

Priya Sharma

36



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The airline says it was extraordinary circumstances

Priya Sharma, 36

PROBLEM, IN THE CLIENT'S OWN WORDS

In August I had a flight from Heathrow to Rome that was delayed by 7 hours. I've read that I'm entitled to compensation under the flight delay rules, I think it's £220 for the distance.

I submitted a claim on the airline's website the day after I got back and they sent me an automated email saying they'd received it. Three weeks later I got a proper response saying the delay was caused by 'extraordinary circumstances', specifically air traffic control restrictions, and that they therefore weren't liable to pay compensation.

I've been reading about this online and it seems like ATC delays are sometimes a valid defence and sometimes not, depending on the specific circumstances. But I have no way of knowing what actually caused the restriction or whether the airline is just using it as a blanket excuse.

I haven't replied to them yet. I'm not sure whether to accept it, push back, or go to one of those claims management companies. The amount isn't huge but it's the principle, I was stuck in the airport for 7 hours with no proper information. What are my options?

KEY INFORMATION

Client	Priya Sharma
Route	London Heathrow (LHR) to Rome (FCO)
Scheduled departure	August 2025
Delay	7h 00m departure / 6h 54m arrival (UK261 turns on arrival)
Claim amount	£220 (UK Regulation 261/2004)
Airline defence	'Extraordinary circumstances', EUROCONTROL ATC + aircraft rotation (per FlightAware)

DOCUMENTS PROVIDED

#	FILENAME	DESCRIPTION
01	booking_confirmation.pdf	Flight booking confirmation showing the Heathrow to Rome route, scheduled departure time, and booking reference.
02	boarding_pass.pdf	Boarding pass showing the actual departure time, 7 hours after scheduled.
03	airline_acknowledgment_email.pdf	Automated email from the airline confirming receipt of Priya's compensation claim.
04	airline_rejection_email.pdf	Email from customer service declining the claim, citing 'extraordinary circumstances caused by air traffic control restrictions imposed by EUROCONTROL'.

#	FILENAME	DESCRIPTION
05	flight_tracker_screenshot.png	Screenshot from a flight tracking website showing the flight's actual departure and arrival times, confirming the 7-hour delay.